

# Instructions: Human Rights Complaint Form

## Purpose of this form

This form collects the information needed to submit a human rights complaint to the Alberta Human Rights Commission (the Commission, we, us).

## Important information

- If you or someone you name in this complaint may be in danger, contact the police.
- There is no fee to file a human rights complaint.
- The Commission may not accept forms that are missing essential information or are not signed.
- The Commission prefers to receive completed forms by email.

## Filling in the complaint form

1. Complete all sections that apply to you to help us assess your complaint.
2. Read the Human Rights Complaint Guide (the **guide**) as you complete each section of this form.
3. If typing, complete this form using at least size 11 font.
4. If completing the form in writing, use pen. Do not use pencil. Make sure writing is readable.
5. Add extra pages if you need more space to answer questions, up to a limit of 20 single-sided pages. This page limit includes the pages of this form, but does not include the instructions pages or contact information page. If Section G applies to you, it has a limit of 10 additional pages.
6. Contact the Commission if you have questions about completing the form.
7. Print the form on one side only—leave back pages blank. This also applies to additional pages.
8. Sign and date the last page of this form. List the total number of pages you are sending on the last page of the form, so we know the form we receive is complete.
9. Send the form and any additional pages to the Commission by email. You can also fax or mail it to, or drop it off at, either of our offices during business hours.

## Contact the Alberta Human Rights Commission

**Website** [albertahumanrights.ab.ca](http://albertahumanrights.ab.ca)

**Email address** [ahrc.registrar@gov.ab.ca](mailto:ahrc.registrar@gov.ab.ca)

**Confidential inquiry line** 780-427-7661

**Fax** 780-427-6013

To call toll-free within Alberta, dial 310-0000 and then enter the area code and phone number.

TTY service for persons who are deaf or hard of hearing: to call toll-free within Alberta, dial 1-800-232-7215.

**Alberta Human Rights Commission  
Southern Regional Office**  
200 John J. Bowlen Building  
620 - 7 Avenue SW  
Calgary, Alberta T2P 0Y8

**Alberta Human Rights Commission  
Northern Regional Office**  
800 - 10405 Jasper Avenue NW  
Edmonton, Alberta T5J 4R7

**You can ask for this Form in an accessible format  
if you do not read conventional print.**

## Contact Information

### Protecting your personal information

The Commission collects your contact information so we can communicate with you during the complaint process.

The Complaint Form begins on the next page, after you complete this contact information section. The Commission sends the Complaint Form, not including the contact information, to the person or organization you believe may have discriminated against you, so they can respond to the complaint. We call this person or organization the “respondent.”

The respondent will know your name but we do *not* share your contact information with the respondent or outside of the Commission unless your complaint reaches a Human Rights Tribunal.

### Your contact information

Put your contact information here if you are the person making this complaint. You will be the “complainant” in the complaint process.

|                                                                                                                                                                     |                                                                                                                         |             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------|-------------|
| First name                                                                                                                                                          | Last name                                                                                                               |             |
| Mailing address                                                                                                                                                     |                                                                                                                         |             |
| Town or city                                                                                                                                                        | Province                                                                                                                | Postal code |
| Please list all phone numbers we can use to contact you, starting with the best way to contact you during the day. Include area codes.                              | Email (by providing an email address, you understand all future documents and correspondence may be sent by email only) |             |
| If you wish, please tell us your pronouns so that we can address you properly (she, he, they, any pronoun, none used, etcetera). You may also leave this box blank. |                                                                                                                         |             |

You must let us know if your address and phone number change. **If you do not, we may close or dismiss your complaint.**

### Having someone represent you

You may choose to have another person represent you and communicate directly with the Commission in the complaint process. This includes an authorized representative, lawyer, or litigation representative. For definitions of these roles, see page 2 of the **guide**.

You will need **an additional** form if someone other than a lawyer is representing you. Visit [albertahumanrights.ab.ca/forms](http://albertahumanrights.ab.ca/forms) for the correct form.

# Human Rights Complaint

|                                                         |
|---------------------------------------------------------|
| Inquiry # (fill in only if you have an existing number) |
|---------------------------------------------------------|

|                                             |
|---------------------------------------------|
| <b>For office use only</b><br>Date received |
|---------------------------------------------|

## Section A

### Who is making this complaint?

We call you the “complainant.”

|            |           |
|------------|-----------|
| First name | Last name |
|------------|-----------|

### Do you have someone representing you for this complaint?

This could be an authorized representative, lawyer, or litigation guardian.

This person must fill in an additional form. See page 2 of the **guide** for details.

|            |           |
|------------|-----------|
| First name | Last name |
|------------|-----------|

## Section B

### Who are you making this complaint about?

We call this the “respondent.” The respondent may be a person, group of people, or an organization. Their contact information is essential for the complaint process.

Use the organization’s name if you are making a complaint about your employer.

|                                                                                                                                                                                  |          |             |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-------------|
| Business, organization, association, or person’s name                                                                                                                            |          |             |
| Street or mailing address                                                                                                                                                        |          |             |
| Town or city                                                                                                                                                                     | Province | Postal code |
| Telephone number (with area code)<br><br>If there is more than one respondent, mark this box<br>Add names and contact information of additional respondents on an attached page. |          |             |

## Section C

### When and where did the possible discrimination happen?

The Commission can only accept complaints that are connected to Alberta and are received within a year of the last time you believe you were discriminated against.

To confirm that the Commission can accept your complaint, please tell us the date of the most recent event of possible discrimination and briefly describe the situation.

Date and brief description of most recent event

Confirm the events you are making this complaint about happened in or are connected to Alberta. See page 3 of the **guide** for more details.

City, town, or place where the discrimination happened

## Section D

### Is your complaint a human rights issue under Alberta law?

The *Alberta Human Rights Act* (we call it the “*Act*” in the rest of this document) governs human rights law in Alberta. For the Commission to accept a complaint, it must fall within specific categories defined in the *Act*. If someone has treated you negatively or unfairly **and** it is based on at least one of the following areas **and** at least one of the following grounds, your issue may fall under the *Act*. See page 3 and 4 of the **guide** for detailed descriptions of the categories.

#### Part 1: Protected areas

The possible discrimination must have happened in one (or more) of these areas of life or work. The *Act* calls these **protected areas**. Mark the areas that apply in your complaint.

employment practices, applications, and advertisements

equal pay based on your gender

goods, services, accommodation, or facilities

membership in a trade union, employers’ organization, or occupational association

tenancy

statements, publications, notices

## Part 2: Protected grounds

The possible discrimination must have been based on one (or more) of these grounds. The *Act* calls these **protected grounds**. Mark the grounds that apply in your complaint.

age

ancestry

colour

family status

gender (also includes sexual harassment, pregnancy)

gender expression

gender identity

marital status

mental disability

physical disability

place of origin

race

religious beliefs

sexual orientation

source of income

**Note:** Not all negative treatment is discrimination under the *Act*. If your concern matches at least one **protected area** and one **protected ground**, the Commission will review your complaint for acceptance. You can find more information about protected areas and grounds on page 3 and 4 of the **guide** or on our website.

### Use a separate form for particular types of complaints under Section 10 of the Act

You can also make a complaint if you believe you were retaliated against because you were involved in a human rights complaint or issue. You can also make a complaint if you believe someone made a frivolous or vexatious complaint against you. If one of these situations applies to you, visit [albertahumanrights.ab.ca/forms](http://albertahumanrights.ab.ca/forms) for a **different** form.

## **Section E**

### **What happened?**

Use this section to explain how someone discriminated against you because of the protected grounds you marked in Section D.

#### **Part 1: Main points**

Explain the main, high level points about your complaint here in Part 1.  
Describe details and a timeline in Part 2 on the next page.

- How were you treated poorly or differently than other people?
- How does this treatment relate to the protected grounds?
- Who was involved?
- What was said or done?

Add extra pages if you need more space, up to the 20-page limit explained in the instructions.

## Part 2: What happened and who was involved

List dates and details of events based on the protected grounds you checked off in Section D. List events in the order they happened. The *Act* specifies a one-year limit. You may list events from more than one year ago, but they may not be considered as part of the complaint.

List supporting documents (if you have any) that confirm the facts or give a record of events. These might include:

- emails or texts
- medical documents or notes
- minutes of meetings
- termination letters or a Record of Employment (ROE)
- Workers' Compensation Board (WCB) documents, with case number

Add extra pages if you need more space, up to the 20-page limit explained in the instructions.

**Do not send the documents**, just list them here. If needed, you will have an opportunity to provide documents later in the complaint process.

| Date<br>(dd/mm/yyyy) | What happened | List supporting<br>documents (if any) |
|----------------------|---------------|---------------------------------------|
|                      |               |                                       |
|                      |               |                                       |
|                      |               |                                       |
|                      |               |                                       |
|                      |               |                                       |
|                      |               |                                       |



## Section F

### How do you think the issue could be reasonably resolved?

You and the respondent will be expected to consider reasonable settlement offers.

See page 6 of the **guide** for more information about possible remedies and resolutions.

## **Section G**

### **Have you taken other actions related to this complaint?**

Have you taken any other legal or formal action about this complaint (or about basically the same issues this complaint raises)? For example, have you filed a union complaint (called a grievance) or legal action in court?

If you have:

- Explain the other action you have taken.
- List documents from the other action taken, including documents that started the action, responded to it, or made a decision on it. You may attach a maximum of 10 pages about the other action. Do not count these pages as part of the 20-page limit for your complaint.

## Section H

### Signature and checklist

To the best of my knowledge, the information in this complaint form is complete and accurate.

\_\_\_\_\_  
Complainant's signature

\_\_\_\_\_  
Date (dd/mm/yyyy)

Please check this box to represent your signature if you are submitting this form electronically. You must also fill in the date above.

### Final check

#### Confirm that you have:

filled in all sections of the form that apply to you, including your contact information

signed, dated, and numbered any pages you added

listed the total number of pages you are sending us here: \_\_\_\_\_

signed the form on the Complainant's signature line above or checked the electronic submission box

Remember, the Commission may not accept the form if it is missing essential information or is not signed.

|                                         |                       |
|-----------------------------------------|-----------------------|
| <b>Our office use only</b>              | Date originally filed |
| Protected area(s) and section number(s) | Complaint #           |
| Protected ground(s)                     | Human Rights Officer  |